

25STCV34694 25STCV34694

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Case Number: 25STCV34694 Hearing Date: September 8, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

CONDON & FORSYTH LLP,

Plaintiff,

vs.

CHARLES SONSON, et al.,

Defendants.

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CASE NO.: 25STCV34694

[TENTATIVE] ORDER GRANTING MOTION FOR LEAVE
TO AMEND

Dept. 506

8:30 a.m.

September 8, 2026

On

November 26, 2025, Plaintiff Condon & Forsyth LLP filed this action against
Defendants Charles Sonson, Century Jets Aviation LLC, AC Aviation Services LLC,
and N730CJ LLC.

On

July 7, 2026, Plaintiff filed a motion for leave to amend the Complaint.

The

Court may, in its discretion and after notice to the adverse party, allow an amendment
to any pleading. (Code Civ. Proc., § 473,
subd. (a)(1).) A motion to amend a pleading
must include a copy of the proposed amendment or amended pleading which must be
serially numbered to differentiate it from previous pleadings or amendments and
must state what allegations in the previous pleading are proposed to be deleted
or added, if any, and where, by page, paragraph, and line number, the allegations
are located. (California Rules of Court,
rule 3.1324(a).) The motion shall also be
accompanied by a declaration attesting to the effect of the amendment, why the amendment

is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).)

Plaintiff

provides a red-lined copy of the proposed first amended complaint (“FAC”), which adds allegations of alter ego liability and supplements allegations relating to Charles Sonson's personal liability. (Nowinski

Decl. ¶¶ 5-6, 9-11 & Ex. C.) Plaintiff

discovered facts giving rise to the amendments when Defendants served discovery responses on April 16, 2026. (Nowinski Decl.

¶¶ 19-20.)

Defendants

oppose the motion because “(1) the proposed Amended Complaint indicates bad faith in the belated attempt to add not only alter ego allegations but also an allegation changing without explanation a major allegation regarding the alleged contract; (2) it is improper to attempt to derail the proposed Summary Judgment for Mr. Sonson by adding new allegations which Mr. Sonson had no reason to contract in his motion; and (3) Plaintiff will not be deprived of a claim of alter ego if this motion for leave to amend is denied.” (Opposition at p. 2.)

As

Defendants admit, the pending motion for summary judgment was filed on February 10, 2026—before Plaintiff had Defendants' relevant discovery responses, and less than three months after Plaintiff filed this action. (See Opposition at p. 5.) As Plaintiff notes, it “could not responsibly have alleged alter ego with the requisite good-faith basis until it had verified responses to rely on. It did so within weeks of receiving those responses.” (Reply at p. 4.)

Defendants

accuse Plaintiff of “throw[ing] sand in the gears of Mr. Sonson's summary judgment motion.” (Opposition at p. 7.) Defendants also argue that “[i]t is not necessary for Plaintiff to allege alter ego in its complaint to preserve its right to advance this claim,” and Plaintiff can move to add additional judgment debtors as alter egos if Plaintiff eventually receives a judgment in its favor. (Ibid.) Defendants urge that Plaintiff can attempt to prove an alter ego claim “if the case does not settle and if it gets a judgment against one or more of the LLC defendants and if plaintiff is unable to satisfy such judgment.” (Id. at p. 8.) Defendants contend that “[t]his case belongs in

that 98% category" of cases that are resolved without going to judgment, and "Plaintiff would be better off sitting down to settle this case rather than attempting to delve into the private financial affairs of Mr. Sonson and the LLC Defendants." (Id. at p. 8.) But "the law strongly favors trial and disposition on the merits." (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233.)

This case is less than a year old. Trial is not until May 1, 2028. Because there is no showing of prejudice, the motion for leave to amend is GRANTED.

Plaintiff is ordered to file and serve the FAC within 10 days.

Defendant Sonson's pending motion for summary judgment is primarily based on his contention that he never requested representation from Plaintiff as an individual and never agreed to guarantee payment for legal services provided to the LLC Defendants. Plaintiff's new alter ego allegations will moot Defendant Sonson's arguments about individual liability.

Accordingly, on the Court's own motion, the Hearing on Motion for Summary Judgment as to Defendant Charles Sonson scheduled for September 29, 2026 is TAKEN OFF CALENDAR.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 8th day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court